

CHAPTER 279

SOIL CONSERVATION

Acts Nos. 25 of 1951, 29 of 1953.

AN ACT TO MAKE PROVISION FOR THE CONSERVATION OF SOIL RESOURCES, FOR THE PREVENTION OR MITIGATION OF SOIL EROSION AND FOR THE PROTECTION OF LAND AGAINST DAMAGE BY FLOODS AND DROUGHT.

[13th August, 1951.]

1. This Act may be cited as the Soil Conservation Act.
2. (1) It shall be the duty of the Director to cause surveys and investigations to be made for the purposes of ascertaining the nature and extent of soil erosion and of damage to land by floods and droughts and of enabling the Minister to determine the areas which should be declared under this Act to be erodible areas.

(2) For the purposes of any survey or investigation carried out under subsection (1), it shall be lawful for any officer authorized in writing by the Director in that behalf to enter and inspect any land at any reasonable time, together with such other persons as he may require, and to carry out thereon all such examinations and inquiries as may be necessary.
3. The Minister may by Order published in the Gazette declare any area defined in the Order to be an erodible area for the purposes of this Act.
4. The Minister may make regulations, to be applicable either generally in all erodible areas, or specially in any specified erodible area—
 - (a) requiring the owners of land to take measures designed to prevent or control soil erosion, including measures for the afforestation of sources of streams and of the banks of streams, for the reservation of a prescribed width of land free of cultivation along the banks of streams, for the conservation of vegetation along the banks of streams, for the training of streams by means of check dams or otherwise, and for the erection of contour ridges or terraces;
 - (b) prohibiting or restricting the clean weeding of land or other agricultural practices conducive to soil erosion;
 - (c) restricting the use of land for agricultural or pastoral purposes, where such restriction is necessary for the purpose of preventing or controlling soil erosion or of protecting the sources and banks of streams;
 - (d) prohibiting or controlling the exploitation of forest and grass land resources in the interests of soil conservation or for the purpose of reducing the danger of fires or of damage caused thereby;
 - (e) authorizing any prescribed officer or person to give directions for seasonal or periodical changes in the type or nature of crops cultivated, or for the adoption or alteration of cultivation practices for the purpose of promoting soil conservation.

5. Where the Minister is satisfied that any land in any erodible area should be withdrawn from cultivation or that any measures designed to prevent or reduce erosion should be taken on or with respect to any such land by the Government, the Minister may declare that the land is needed for a public purpose; and upon such declaration being made, the land shall be acquired under the Land Acquisition Act, and the provisions of that Act (other than the provisions of sections 2 and 3 thereof) shall apply accordingly.

6. The Minister may make regulations for or in respect of all or any of the following matters:—

- **(a)** the measures to be taken by owners of land for the purposes of the preservation and promotion of soil fertility and of facilitating the absorption of moisture by the soil;
- **(b)** the measures to be taken by owners of land for the purpose of preventing or reducing or remedying damage by soil erosion;
- **(c)** the control of the grazing of animals in so far as grazing interferes with the cultivation of land or is likely to reduce soil fertility or to be conducive to damage by soil erosion;
- **(d)** the control of floods and of the effects of drought by means of provision requiring the diversion of water or the storage of water, and the correlation of measures designed to control floods and conserve water with measures taken by local authorities for the purpose;
- **(e)** the prohibition or restriction of the burning of grass land and of the spread of fire during the burning of chenas;
- **(f)** the specification of the times of tillage and irrigation and of the methods of irrigation in specified areas in order to ensure the economic use of available water;
- **(g)** the authorization of any prescribed officer or person to give directions for seasonal or periodical changes in the type or nature of crops cultivated, or for the adoption or alteration of cultivation practices for the purpose of promoting soil conservation;
- **(h)** the cambering and cross-draining of roads and paths under the control of any Government department or local authority and the prohibition or control of the scouring of drains and water-channels;
- **(i)** any matter in this Act stated or required to be prescribed.

7. (1) Where the owner of any land is required by any regulation made under this Act to take any measures upon or with respect to that land, the Director may, if authorized thereto by regulations made in that behalf and subject to such conditions or restrictions as may be prescribed by such regulations, grant a loan to the owner for the purpose of assisting him to defray the cost of such measures.

(2) No loan shall be made under the preceding provisions of this section except out of moneys provided by Parliament for the purpose.

(3) Regulations may be made prescribing the security upon which loans may be granted under this section and the rate of interest payable upon such loans, and providing for the time and manner of the repayment or recovery of the principal and interest due on such loans.

8. (1) In any case where any owner of any land fails to take on or with respect to the land any measures specified in that behalf in any regulation made under this Act, it shall be lawful for the

Director, after giving to the owner notice of such duration as may be prescribed, to cause such measures to be taken on or with respect to that land by an officer authorized in writing by the Director in that behalf; and it shall be lawful for any officer so authorized to enter the land, together with such other persons as he may require, and to carry out thereon all such work as may be necessary for the purpose of taking the required measures.

(2) The cost of carrying out any work on or with respect to any land in pursuance of the powers conferred by subsection (1) shall be payable by the owner in such instalments as may be prescribed; and the amount of any such instalment, if unpaid, shall be recoverable by civil action as a debt due to the State.

9. (1) Every regulation made by the Minister under this Act shall be brought before Parliament for approval, and if so approved shall be published in the Gazette and come into operation upon the date of such publication.

(2) Any regulations made under this Act may empower any such officer or person as may be specified therein to make such orders or issue such directions to owners of land, cultivators or other persons as may be necessary for securing compliance with or carrying out the objects and purposes of this Act or of any regulations made thereunder.

10. There may be appointed all such officers and servants as may be necessary for carrying out or giving effect to the principles and purposes of this Act.

11. Any person who contravenes or fails to comply with any regulation made under this Act or any order or direction made or given under any such regulation, or who resists or obstructs the Director or any other officer in the exercise or performance of any function or duty conferred or imposed on the Director or such officer by or under this Act, shall be guilty of an offence and liable on conviction after summary trial before a Magistrate to a fine not exceeding five hundred rupees.